

Nihaluddin v. State of U.P.

Allahabad High Court · Division Bench · 6 August 2022 · WRIT - C No. 22416 of 2022 · **Writ disposed; petitioner relegated to Para 6.8 objection with stay of coercive recovery.**

HEADNOTE

A consumer's writ to quash an electricity demand of Rs 4,19,921 and the related recovery certificates was disposed of without examination of merits. On the distribution licensee's statement that an objection would be decided in a time-bound manner, the Court granted liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks, directed decision within the next four weeks after hearing, and stayed coercive action for eight weeks or until disposal, whichever is earlier.

FACTUAL SUMMARY

Nihaluddin challenged before the Allahabad High Court Online Recovery Certificate No. 2021010918860736 dated 09.09.2021 for Rs 4,19,921 on account ID 20181647A, issued pursuant to a Power Distribution Corporation letter, and a further recovery certificate dated 06.07.2022 initiated by the Tehsildar, Sadar, Gorakhpur under Rule 141(3) of the U.P. Revenue Code, 2006. Counsel for the distribution licensee stated that the petitioner could object to the demand, to be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to demand — alternate remedy with stay

HOLDING

Without expressing any opinion on merits, a writ challenging an electricity demand and recovery certificate is disposed of with liberty to the consumer to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before the distribution licensee within four weeks; if so submitted, the licensee shall decide it in accordance with law within the next four weeks after affording a reasonable opportunity of hearing, and no coercive action shall be taken on the impugned demand for eight weeks or until disposal of the objection, whichever is earlier. ¶ 3-5

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy Writ against an electricity demand and revenue recovery certificate was disposed of, without merits adjudication, by relegating the consumer to an objection under Para 6.8 of the Supply Code. ¶ 3-4

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay On the licensee's statement, the Court directed time-bound disposal of a Para 6.8 objection after hearing and stayed coercive recovery for eight weeks or until disposal, whichever is earlier. ¶ 3-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE IMPUGNED DEMAND AND RECOVERY CERTIFICATES

The Court expressly declined to examine the merits of the consumer's challenge to the demand of Rs 4,19,921 and the related recovery proceedings. ¶ 4